

25STCV21860 25STCV21860

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-17

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Case Number: 25STCV21860 Hearing Date: September 17, 2026 Dept: 512

HEARING DATE: Thurs.,

September 17, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Alvarado,

et al. v. North Beverly COMPL.

FILED: 07-24-25

Development,

Inc. FAC FILED: 04-13-26

CASE NUMBER: 25STCV21860 ANSWER

FILED: 05-20-26

NOTICE: OK

PROCEEDINGS: MOTION

FOR LEAVE TO FILE A CROSS-COMPLAINT

MOVING PARTY: Defendant

North Beverly Development, Inc.

RESP. PARTY: None

MOTION FOR LEAVE TO FILE A

CROSS-COMPLAINT

(CCP §§ 426.50, 428.10-428.80)

TENTATIVE RULING:

Defendant

North Beverly Development, Inc.'s unopposed Motion for Leave to File Cross-Complaint is GRANTED.

Defendant

is to file and serve the Cross-Complaint within 5 days of this order.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a)
OK

☒
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 15, 2026 ☐ Late ☒ None

REPLY: None
filed as of September 15, 2026 ☐ Late ☒ None

ANALYSIS:

I.

Background

On July 24, 2025, Plaintiffs Veronica Alvarado, Salvador Gomez, Osvaldo Edgar Alvarado, Daniel Alvarado, Cary Alvarado, Fidel Alvarado, and minors Oralani Alavarado Gomez and Veronica Mia Alvarado by and through their guardian ad litem Veronica Alavarado ("Plaintiffs") filed the instant action against Defendant North Beverly Development Inc. ("Defendant") and Does 1-50.

On April 13, 2026, Plaintiffs filed a First Amended Complaint ("FAC") against Defendant and Does 1-50, alleging causes of action for Breach of Implied Warranty of Habitability, Breach of Statutory Warranty of Habitability, Breach of the Covenant of Quiet Enjoyment, Negligence, and Violation of Tenant Anti-Harassment Ordinance.

On May 20, 2026, Defendant filed an Answer.

On August 12, 2026, Defendant filed the instant Motion for Leave to File Cross-Complaint (the "Motion").

No Opposition was filed.

II. Legal Standard

Code of Civil Procedure section 428.50 provides:

(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

(Code Civ. Proc., § 428.50.)

A "party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the

adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.” (Code Civ. Proc., § 426.50, emphasis added.)

“The legislative mandate is clear. A

policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (Silver Organizations Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98-99 (Silver Organizations).) “ ‘Bad faith,’ is defined as “[t]he opposite of ‘good faith,’ ” generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake . . . , but by some interested or sinister motive[,] . . . not simply bad judgment or negligence, but rather . . . the conscious doing of a wrong because of dishonest purpose or moral obliquity; . . . it contemplates a state of mind affirmatively operating with furtive design or ill will. [Citation.]” [Citations.]’ [Citation.] ” (Id., at p. 100.)

A cross-complaint is compulsory if it is transactionally related to the subject matter of the complaint. (Code Civ. Proc., § 426.10.) “To be considered a compulsory cross-complaint, a related cause of action must have existed at the time of the service of [the] answer to [the] complaint.” (Crocker National Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.) The late filing of a motion for leave to file a compulsory cross-complaint “absent some evidence of bad faith is insufficient evidence to support denial of the motion.” (Silver Organizations, supra, 217 Cal.App.3d at p. 101.) “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (Crocker, supra, 221 Cal.App.3d at p. 864.)

III.

Discussion

Defendant seeks leave of court to file a compulsory

Cross-Complaint to assert causes of action against the adult Plaintiffs named in the FAC that “arise from the same tenancy, occupancy, property conditions, access history, recovery of possession, and related events placed at issue by Plaintiffs.” (Motion, pp. 1-2, 7-9, Meshekow Decl., Kellener Decl.) Further, the “motion followed recent discovery that materially clarified the factual bases and scope of the proposed claims. The motion also followed the concrete risk that settlement performance could conclude the entire action before the claims were filed. Acting on those developments is diligence, not bad faith.” (Motion, pp. 7-8; see Motion, Kellener Decl.) Finally, the Motion asserts that granting leave to file the Cross-Complaint promotes judicial economy and will not prejudice Plaintiffs on the following grounds:

The proposed adult Cross-Defendants are already parties. The claims concern the same premises, documents, witnesses, and period already in dispute. No deposition has been completed. Plaintiffs will retain every procedural and substantive defense, including the right to answer, demur, move to strike, conduct discovery, and challenge proof at trial. The Court may address any scheduling consequence through ordinary case-management orders. The proposed Cross-Complaint also avoids duplication. It excludes the minor Plaintiffs, excludes amounts already reduced to judgment against Salvador Gomez and Osvaldo Alvarado, and expressly disclaims liability based on the filing of this action, discovery responses, settlement communications, governmental complaints, or other protected petitioning activity. The fraud claim is limited to alleged pre-surrender concealment and direct tenancy and property-management communications. Granting leave does not prevent Plaintiffs from completing their settlement or dismissing their Complaint.

(Motion, p. 8.) The Motion is accompanied by a Proposed Cross-Complaint. (See Motion, Cross-Compl.)

The Court finds Defendants' proposed Cross-Complaint contains compulsory claims. (Motion, Proposed Cross-Compl.) The Cross-Complaint's causes of action arise out of the same “transaction, occurrence, or series of transactions or occurrences” as the causes of action in Plaintiffs' FAC – specifically, the residential lease contract between the adult parties in the instant action. (Motion, Meshekow Decl., Kellener Decl.; FAC.; Code Civ. Pro., § 426.10; Crocker, supra, 221 Cal.App.3d at p. 864.)

As the Motion is unopposed, does not

appear to be made in bad faith, and is brought due to material learned during discovery, the Motion is GRANTED. (See Code Civ. Proc., §§ 426.50, 428.50; Silver Organizations Ltd., supra, 217 Cal.App.3d at pp. 98-99; Crocker, supra, 221 Cal.App.3d at p. 864.)

IV.

Conclusion & Order

For

the foregoing reasons, Defendant North Beverly Development, Inc.'s unopposed Motion for Leave to File Cross-Complaint is GRANTED.

Defendant

is to file and serve the Cross-Complaint within 5 days of this order.

Moving party is ordered to give notice.